

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

SHAQUERA DAVIS,

Plaintiff,

-against-

**THE CITY OF NEW YORK/ NEW YORK CITY POLICE
DEPARTMENT AND HYPPOLITE J. PAUL,**

Defendants.

Index No.:

Plaintiff designates
NEW YORK County
as the place of trial

The basis of Venue is
the County in which the
Cause of Action Arose

SUMMONS

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

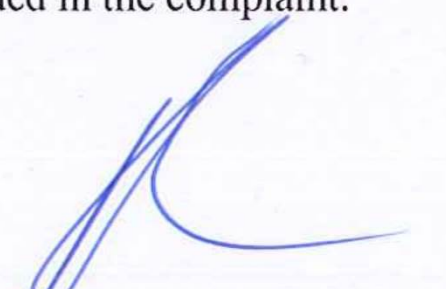
Dated: Bronx, New York
February 5, 2019

Defendant's Address:

**THE CITY OF NEW YORK/NYC
POLICE DEPARTMENT
Office of the Corporation Counsel
100 Church Street
New York, New York 10007**

**THE CITY OF NEW YORK/NYC
POLICE DEPARTMENT
Office of the Corporation Counsel
100 Church Street
New York, New York 10007
ATTN.: HYPPOLITE J. PAUL**

**HYPPOLITE J. PAUL
1 Lefrak City Plaza
Queens, New York 11368**


**Robert A. Birnbaum, Esq.
STILLMAN & STILLMAN, P.C.
Attorneys for Plaintiff
2622 East Tremont Avenue
Bronx, New York 10461
(718) 828-1400**

**YOU SHOULD IMMEDIATELY BRING THESE DOCUMENTS TO YOUR
ATTORNEY OR INSURANCE COMPANY**

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

SHAQUERA DAVIS,

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-against-

**THE CITY OF NEW YORK/THE CITY OF NEW YORK
POLICE AND HYPPOLITE J. PAUL,**

Defendants.

Plaintiff complaining of the defendants by her attorneys, **STILLMAN & STILLMAN, P.C.**, respectfully shows to this Court and alleges:

I. That at all times as stated herein, plaintiff, **SHAQUERA DAVIS** was and still is a resident of the County of New York, City and State of New York.

2. That all times as stated herein, upon information and belief, defendant **THE CITY OF NEW YORK/ NEW YORK CITY POLICE DEPARTMENT**, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. That at all times as stated herein, upon information and belief, defendant, **NEW YORK CITY POLICE DEPARTMENT**, was and still is a public agency under the control of **THE CITY OF NEW YORK**

4. That at all times as stated herein, upon information and belief, defendant, **HYPPOLITE J. PAUL**, was and still is a resident of the County of Queens, City and State of New York.

5. That at all times as stated herein, upon information and belief, defendant, **HYPPOLITE J. PAUL**, was employed by Defendant **CITY OF NEW YORK/NEW YORK CITY POLICE DEPARTMENT**.

6. That at all times as stated herein, upon information and belief, defendant, **HYPPOLITE J. PAUL**, was employed as a Police Officer by Defendant **CITY OF NEW YORK/NEW YORK CITY POLICE DEPARTMENT**.

7. That at all times as stated herein, upon information and belief, East 127th Street at or about its intersection with 5th Avenue, New York, New York, was and still is a public roadway.

8. That the plaintiff has complied with all the conditions precedent to the bringing of this action, and has complied with the provisions of the statutes in such case made and provided.

9. That the plaintiff has presented proper Notice of Claim to **THE CITY OF NEW YORK/NEW YORK CITY POLICE DEPARTMENT**.

10. That more than thirty (30) days have elapsed since the presentation of such Notice of Claim, and said claim remains unadjusted.

11. That said Notice of Claim was served upon **THE CITY OF NEW YORK/NEW YORK CITY POLICE DEPARTMENT** within ninety (90) days from the happening of the negligence of **THE CITY OF NEW YORK/NEW YORK CITY POLICE DEPARTMENT** hereinafter described and sued upon.

12. That the within action is being commenced by service of the Summons and Complaint within one year and ninety days from the date that the cause of action arose.

13. That at all times as stated herein, plaintiff **SHAQUERA DAVIS** was the owner and operator of the 2007 Honda bearing New York State license plate number FDB9810.

14. That at all times as stated herein, upon information and belief, defendant, **THE CITY OF NEW YORK/ NEW YORK CITY POLICE DEPARTMENT**, was the owner of a 2014 Ford Motor Vehicle bearing New York State License Plate No. 4911.

15. That at all times as stated herein, upon information and belief, defendant, **THE CITY OF NEW YORK/NEW YORK CITY POLICE DEPARTMENT**, was negligent in the ownership of the 2014 Ford Motor Vehicle bearing New York State License Plate No. 4911.

16. That at all times as stated herein, upon information and belief, defendant, **THE CITY OF NEW YORK/NEW YORK CITY POLICE DEPARTMENT**, maintained a 2014 Ford Motor Vehicle bearing New York State License Plate No. 4911.

17. That at all times as stated herein, upon information and belief, defendant, **THE CITY OF NEW YORK/ NEW YORK CITY POLICE DEPARTMENT**, was negligent in the maintenance of the 2014 Ford Motor Vehicle bearing New York State License Plate No. 4911.

18. That at all times as stated herein, upon information and belief, defendant, **HYPPOLITE J. PAUL**, was the operator of a 2014 Ford Motor Vehicle bearing New York State License Plate No. 4911.

19. That at all times as stated herein, upon information and belief, defendant, **HYPPOLITE J. PAUL**, was negligent in the operation of the 2014 Ford Motor Vehicle bearing New York State License Plate No. 4911.

20. That at all times as stated herein, upon information and belief, defendant, **HYPPOLITE J. PAUL** controlled a 2014 Ford Motor Vehicle bearing New York State License

Plate No. 4911.

21. That at all times as stated herein, upon information and belief, defendant, **HYPPOLITE J. PAUL**, was negligent in the control of the 2014 Ford Motor Vehicle bearing New York State License Plate No. 4911.

22. That at all times as stated herein, upon information and belief, defendant **HYPPOLITE J. PAUL**, operated the 2014 Ford Motor Vehicle bearing New York State License Plate No. 4911. with the knowledge, permission and consent of defendant **THE CITY OF NEW YORK/ NEW YORK CITY POLICE DEPARTMENT**.

23. That at all times as stated herein, upon information and belief, defendant That at all times as stated herein, upon information and belief, defendant **HYPPOLITE J. PAUL**, operated the 2014 Ford Motor Vehicle bearing New York State License Plate No. 4911 during the course of his employment with defendant **THE CITY OF NEW YORK/ NEW YORK CITY POLICE DEPARTMENT**.

24. That at all times as stated herein upon information and belief defendant, **THE CITY OF NEW YORK/NEW YORK CITY POLICE DEPARTMENT**, negligently entrusted the 2014 Ford Motor Vehicle bearing New York State License Plate No. 4911 in that defendant, **THE CITY OF NEW YORK/NEW YORK CITY POLICE DEPARTMENT**, possessed special knowledge concerning a characteristic or condition peculiar to defendant,, **HYPPOLITE J. PAUL**, that rendered his use of the vehicle unreasonably dangerous at the time and place stated herein.

25. That on December 4, 2017, upon information and belief the motor vehicle bearing

New York State License Plate No. 4911 operated by defendant **HYPOLITE J. PAUL** came into contact with 2015 Toyota Motor Vehicle bearing New York State License Plate No HCE2715 operated by plaintiff **SHAQUERA DAVIS**.

26. That at all times as stated herein, upon information and belief, defendants **THE CITY OF NEW YORK/ NEW YORK CITY POLICE DEPARTMENT**, and **HYPOLITE J. PAUL** as stated herein, acted in a willful, wanton, reckless, dangerous and negligent manner, at the time and place stated herein.

27. That solely as a result of the negligence of the defendants as stated herein, plaintiff, **SHAQUERA DAVIS**, sustained serious, severe and permanent injuries and disabilities, pain and suffering and loss of enjoyment of life; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain; was compelled to obtain medical treatment and will be compelled to undergo further medical treatment for an undetermined amount of time and has been damaged accordingly in such amount as exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, or such amount as may be determined by a Court and/or jury.

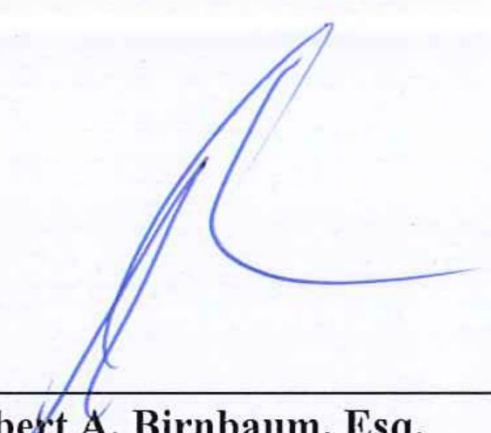
28. Plaintiff, **SHAQUERA DAVIS**, has sustained serious injury as defined in subsection (d) section 5102 of the Insurance Law of the State of New York and/or Economic Loss greater than Basic Economic Loss as defined in subsection (a) of section 5102 of the Insurance Law of the State of New York.

29. The limitations of CPLR Article 16 on liability of persons jointly liable does not apply to this case as Defendant's liability is by their reason of the use, operation and/or ownership

of a motor vehicle or motorcycle as defined respectively in Vehicle and Traffic Law Sections 311 and 125.

WHEREFORE, plaintiff, **SHAQUERA DAVIS**, demands judgment against the defendants as stated herein, in such amount as exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, or such amount as may be determined by a Court and/or jury, together with costs & disbursements of this action.

Dated: Bronx, New York
February 5, 2019

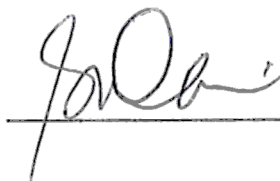


Robert A. Birnbaum, Esq.
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2622 East Tremont Avenue
Bronx, New York 10461
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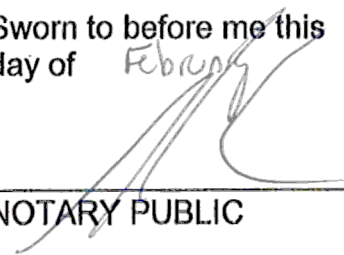
STATE OF NEW YORK)
COUNTY OF BRONX) ss:

INDIVIDUAL VERIFICATION

The undersigned, being duly sworn, deposes and says that the deponent is the plaintiff in the within action; that deponent has read the foregoing and knows the contents thereof; that the same are true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

✓ 

Sworn to before me this 5
day of February, 2019



NOTARY PUBLIC

ROBERT A BIRNBAUM
Notary Public, State of New York
No. 02BI6355464
Qualified in Westchester County
Commission Expires 03/08/2021

Law Offices Of
STILLMAN & STILLMAN, P.C., 2622 East Tremont Avenue, Bronx, New York 10461

**SUPREME COURT OF STATE OF NEW YORK
COUNTY OF NEW YORK**

SHAQUERA DAVIS,

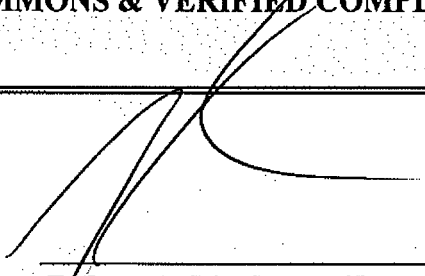
Plaintiff,

-against-

**TONIA A. CIVERS, THE CITY OF NEW YORK/ NEW YORK CITY POLICE
DEPARTMENT AND HYPPOLITE J. PAUL,**

Defendants.

SUMMONS & VERIFIED COMPLAINT



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